

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.2181 of 2019.

In the matter of:

An application under section
115(1) of the Code of Civil
Procedure.

And

Pankaj Kumar Biswas

...Petitioner

-Versus-

Shapna Biswas

...opposite party

No one appears

...For the petitioner

Mr. Muntasir Mahmud Rahman, Advocate

...For the opposite party.

Heard & Judgment on: 05.09.2024.

This Rule was issued calling upon the opposite party to show cause as to why the judgment and decree dated 12.06.2019 (decree signed on 18.06.2019) passed by the learned Joint District Judge, Court No.1, Magura in Family Appeal No.04 of 2018 dismissing the appeal and affirming those dated 30.04.2018 passed by the learned Assistant Judge, Shalikha Court in Family Suit No.15 of 2017 should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the opposite party as plaintiff instituted above Family Suit for recovery of her maintenance.

It was alleged that defendant married the plaintiff on 14.05.2015 by observing Hindu rituals. The defendant subjected the plaintiff to physical and psychological torture on demand of dowry. As such the plaintiff took refuge at the house of her father on 15.04.2016. Since above date the defendant is not paying maintenance to the plaintiff.

The suit was contested by defendant No.1 stating that defendant did not drive away the plaintiff from his home or subjected her to physical for psychological torture and the plaintiff voluntarily left the house of the defendant without permission or consent of the defendant and started to live in the house of her father. As such the plaintiff is not entitled to get maintenance from the defendant.

At trial the plaintiff examined two witnesses and the defendant examined one. No document was produced and proved by the plaintiff or the defendant.

On consideration of facts and circumstances of the case and material on record the learned Judge

of the Family Court decreed the suit and granted maintenance to the plaintiff at the rate of Tk.5000/- per month to be effective from 15.04.2016.

Being aggrieved by above judgment and decree of the Family Court the defendant preferred Family Appeal No.04 of 2018 to the District Judge, Magura which was heard by the learned Joint District Judge, Court No.1 who allowed the appeal and modified the judgment and decree of the trial court and reduced the maintenance of the plaintiff at Tk.4000/- and made the same effective from 15.04.2016.

Being aggrieved by above judgment and decree of the court of appeal below the appellant as petitioner moved to this court and obtained this rule.

No one appears on behalf the petitioner at the time of hearing of this revision.

Mr. Muntasir Mahmud Rahman learned Advocate for the opposite party submits that the petitioner has already paid Tk.60,000/- of the decretal money. The learned Advocate further submits that the marriage of the plaintiff with the defendant is admitted and the defendant has further admitted both in his written statement and evidence in court

that since 15.04.2016 the plaintiff is living in house of her father. The defendant did not claim that he has paid any maintenance to the plaintiff before filing of this suit. On consideration of above materials on record the learned Judges of the courts below concurrently held that plaintiff is entitled to get maintenance from the defendant from 15.04.2016 and the amount of maintenance fixed by the court of appeal below is reasonable and defendant has preferred this revision in order to delay the payment of the maintenance.

I have considered the submission of the learned Advocates for opposite party and carefully examined all materials on record.

It is admitted that the defendant married the plaintiff on 14.05.2015 and since 15.04.2016 the plaintiff is living in the house of her father. The plaintiff has filed this case for maintenance and the defendant did not claim that he paid any maintenance to the plaintiff during her above stay in the house of her father. The parties to this suit are Hindu by religion so there is no scope of divorce of above marriage otherwise then by death. The learned Advocate for the opposite party informed that the petitioner is a school teacher.

On consideration of above materials on record the learned Judge of the Family court fixed the month maintenance of the plaintiff at Tk.5000/- and the court of appeal on consideration of submissions of the learned Advocate for the defendant reduced above maintenance to Tk.4000/-. The maintenance granted by the court of appeal below to the opposite party appears to be reasonable and bearable.

In above view of the materials on record I am unable to find any infirmity or illegality in the impugned judgment and decree of the court of appeal below nor I find any substance in this petition under section 115 of the Code of Civil Procedure and the rule issued in this connection is liable to be discharged.

In the result, the rule is discharged.

Let the lower courts' records along with a copy of this judgment be transmitted down at once.